IN THE SUPERIOR COURT OF PENNSYLVANIA
MIDDLE DISTRICT

No. 97 MDA 2021

COMMONWEALTH OF PENNSYLVANIA,
Appellee,

v.

RICK LAVAR CANNON,
Appellant.

Petition for Panel Reconsideration or En Banc Review from the August 13, 2021 Superior Court Order Affirming the January 13, 2021 PCRA Order of the Court of Common Pleas of Lebanon County at CP-38-CR-0000559-2014.

PETITION FOR PANEL RECONSIDERATION OR EN BANC REVIEW

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TABLE OF CONTENTS

Order in Question 1

Points of Fact and Law Justifying Reconsideration 1

Procedural Background 3

Reasons for Granting This Petition 4

A. The trial court imposed an illegal sentence by failing to make any determination and specific findings on the record that Appellant can or will be able to pay the fine. 7

B. The absence of record evidence that payment of the fine will not interfere with Appellant's ability to pay restitution renders the fine an illegal sentence. 9

C. The absence of record evidence that Appellant can or will be able to pay the fine renders the fine an illegal sentence. 10

Conclusion 13

TABLE OF AUTHORITIES

Cases

Commonwealth v. Allshouse, 924 A.2d 1215 (Pa. Super. Ct. 2007) 7

Commonwealth v. Boyd, 73 A.3d 1269 (Pa. Super. Ct. 2013) (en banc) 11

Commonwealth v. Ford, 217 A.3d 824 (Pa. 2019) 1

Commonwealth v. Heggenstaller, 699 A.2d 767 (Pa. Super. Ct. 1997) 7

Commonwealth v. Mead, 446 A.2d 971 (Pa. Super. Ct. 1982) 12

Commonwealth v. Samuels, 1422 MDA 2018, 2019 WL 3231245 (Pa. Super. Ct. July 17, 2019) (unpublished) 7

Commonwealth v. Snyder, 251 A.3d 782 (Pa. Super. Ct. 2021) 11

Commonwealth v. Thomas, 879 A.2d 246 (Pa. Super. Ct. 2005) 7

Commonwealth v. White, 1283 MDA 2020, 2021 WL 2769834 (Pa. Super. Ct. July 1, 2021) (unpublished) 5

George v. Beard, 824 A.2d 393 (Pa. Commw. Ct. 2003) 7

Statutes and Rules

42 Pa.C.S. § 9726 .....1, 2, 5, 7, 8, 9

Pa. Super. Ct. I.O.P. § 65.38 .....5, 6

ORDER IN QUESTION

Appellant respectfully seeks panel reconsideration or en banc review of the Opinion, entered August 13, 2021, affirming the imposition of $5,000 in fines as part of the sentence from the Court of Common Pleas of Lebanon County in CP-38-CR-0000559-2014. A copy of this Court's Opinion is attached as Exhibit A. In relevant part, the order reads: "Order affirmed. Judgment Entered." Mem. Op. at 12.

POINTS OF FACT AND LAW JUSTIFYING RECONSIDERATION

1. The Court affirmed the imposition of a $5,000 fine even though the trial court never made any "determination" or "specific findings" on the record that Appellant could afford to pay $5,000, inconsistent with prior precedent from this Court holding that a trial court imposes an illegal sentence if it fails to make such a finding on the record.

2. The Court's holding does not address that the trial court failed to mention the restitution award and whether the payment of the fine will impact the restitution payment, in violation of 42 Pa.C.S. § 9726(c), inconsistent with a prior decision from this Court.

3. The Court's holding conflicts with 42 Pa.C.S. § 9726(c) and the Supreme Court's decision in *Commonwealth v. Ford*, 217 A.3d 824, 829 (Pa. 2019), because

the presence of a presentence investigative report, which here explained only that Appellant had previously been employed without any further financial information, is not sufficient to satisfy the record requirements of 42 Pa.C.S. § 9726(c) and *Ford*, as there must be "record evidence that the defendant is or will be able to pay" the fine—not merely evidence concerning defendant's finances—or the sentence is illegal.

4. The Court ruled that Appellant waived the issue of whether trial counsel coerced and unduly pressured him into pleading guilty because he "did not include in his petition his allegation that trial counsel told him he would face the death penalty if he did not plead guilty." However, in his Second Amended PCRA Petition, Appellant alleged that trial counsel was ineffective for coercing and unduly pressuring him into pleading guilty. Similarly, in his Statement of Errors Complained of on Appeal, Appellant alleged that the trial court erred in ruling that trial counsel was not ineffective for coercing and unduly pressuring Defendant into pleading guilty. Appellant did not list all of the reasons he believed trial counsel had coerced and unduly pressured him, as he intended to testify to those facts at the hearing and to elaborate upon in a brief.

PROCEDURAL BACKGROUND

This Application for Reconsideration asks that the Court reconsider its decision with respect to the imposition of the $5,000 fine on Appellant and with respect to finding that Appellant had waived the issue of whether trial counsel coerced and unduly pressured him into pleading guilty.

At the August 26, 2015 sentencing, the trial court sentenced Appellant to imprisonment and fines totaling $5,000. Mem. Op. at 2. At no point during sentencing did the trial court address Appellant's ability to pay that fine, make any findings on the record that he could pay, or otherwise discuss his financial circumstances; instead, the fines were mentioned only when the trial court announced that for each count, Appellant must pay a fine. (N.T. August 26, 2015 at 10-14). The trial court also imposed restitution in the amount of $1,112.62. (N.T. August 26, 2015 at 14).

The record contains a presentence investigation (PSI) report. The only relevant information in the PSI regarding Appellant's finances is that he: 1) has seven minor children; 2) graduated from high school but had no "special training skills" or post-secondary education; 3) and had previously been employed for four months as a housekeeper and eight months as a stocker making $10/hour—dates unknown—prior to one of the times he was incarcerated. PSI report, 7/16/15 at 4-5.

The trial court never made a finding on the record that Appellant could afford to pay the $5,000 fine it imposed or how it would impact his ability to pay restitution. In its 1925 Opinion, the Court stated only that "this Court imposed a lawful sentence that was within the guidelines" without any discussion of the fine. 1925 Op. at 7.

The present appeal followed. As to the fine issue, this Court held that because no challenge to the discretionary aspects of the sentence were preserved, the only challenge to the fine is whether it constituted a legal sentence. Mem. Op. at 9.

Accordingly, the Court concluded that because the trial court had "the benefit of a PSI, which evaluated Appellant's educational history, employment history, and existing assets," it provided the necessary evidentiary basis to impose a fine. Mem. Op. at 11.

As to the issue of waiver, this Court held that because "Appellant did not include in his petition his allegation that trial counsel told him he would face the death penalty if he did not plead guilty," that issue was waived on appeal. Mem. Op. at 6.

REASONS FOR GRANTING THIS PETITION

This Court should grant reconsideration for four reasons.

First, precedent requires that the trial court make specific findings on the record that Appellant could afford to pay the $5,000 fine.

The absence of that finding rendered the sentence illegal, and this Court's conclusion to the contrary is inconsistent both with precedent and overlooked the fact that no finding was made. See Pa. Super. Ct. I.O.P. § 65.38(D)(1) and (3).

Second, when, as here, the trial court imposes both a fine and restitution, 42 Pa.C.S. § 9726(c) places a requirement on trial courts to ensure the record shows that the "fine will not prevent the defendant from making restitution or reparation to the victim of the crime." This Court ruled that a trial court violated this provision when it imposed a fine and made "no mention of the restitution award and whether the payment of the fine will impact the restitution payments to the victim," and the implicit conclusion to the contrary in this Opinion is inconsistent with that decision. *Commonwealth v. White*, 1283 MDA 2020, 2021 WL 2769834, at *4 (Pa. Super. Ct. July 1, 2021) (unpublished). See Pa. Super. Ct. I.O.P. § 65.38(D)(1), (2), and (3).

Third, this Court correctly noted that the PSI report does not render the record completely silent with respect to Appellant's financial circumstances, but that is not sufficient to render the sentence legal under the plain text of the statute, as well as precedent from this Court and the Pennsylvania Supreme Court. As the Supreme Court explained, in *Ford*, while a "silent" record is plainly illegal, so too

is a record that does not actually contain evidence that the defendant is able to pay. It explained, "the plain language of the statute is clear: Trial courts are without authority to impose non-mandatory fines absent record evidence that the defendant is or will be able to pay them." *Ford*, *supra* at 829. To constitute a legal sentence, the fine must be accompanied by evidence showing that Appellant can or will be able to pay. In *Ford*, this meant that the defendant's plea agreement to pay the fine was not sufficient. The same is true here: the record contains no evidence that Appellant can actually pay the $5,000 fine; it contains evidence only that he was once employed without any further details about his present or likely future financial circumstances. The lack of any sufficient record renders the Court's decision inconsistent with the relevant legal standards. See Pa. Super. Ct. I.O.P. § 65.38(D)(1), (2), and (3).

Fourth, although Appellant did not specifically mention, at sentencing, that he felt coerced and unduly pressured to plead guilty because trial counsel told him he would face the death penalty if he did not plead guilty, trial counsel did inform the Court that Appellant "felt as if [trial counsel] had coerced him into pleading guilty and that was not really the decision he wanted to make, but he was influenced by the things that [trial counsel] had said to him." (N.T. August 26, 2015 at 2).

A. The trial court imposed an illegal sentence by failing to make any determination and specific findings on the record that Appellant can or will be able to pay the fine.

As Appellant mentioned in his brief, nothing in the record shows that the trial court "consider[ed] whether Defendant was or would be able to pay the fines"; in other words, the trial court made no findings on the record. Appellant Br. at 33. This Court's precedents have been unequivocal that compliance with Section 9726(c) requires a trial court "must make an on-the-record determination regarding appellant's financial resources and his ability to pay the imposed fine." *Commonwealth v. Heggenstaller*, 699 A.2d 767, 769 (Pa. Super. Ct. 1997). The Court made the same point in *Commonwealth v. Allshouse*, 924 A.2d 1215, 1228 (Pa. Super. Ct. 2007), where it remanded "for specific findings in accordance with section 9726(c) to determine an appropriate fine" (emphasis added). See also *Commonwealth v. Thomas*, 879 A.2d 246, 264 (Pa. Super. Ct. 2005) ("In the present case, the trial court did not make specific findings of appellant's ability to pay the fine imposed."); *Commonwealth v. Samuels*, 1422 MDA 2018, 2019 WL 3231245, at *3 (Pa. Super. Ct. July 17, 2019) (unpublished) (where there were not "specific findings of Appellant's ability to pay the fine imposed," then "consistent with § 9726(c)(1) and *Thomas*, *supra*, we remand the case to the trial court for resentencing after a determination of Appellant's ability to pay a fine."); *White*, *supra* at *4 (same). *George v. Beard*, 824 A.2d 393, 395 (Pa. Commw. Ct. 2003)

("Before imposing a fine, the sentencing court must make findings on a defendant's financial ability to pay" pursuant to § 9726(d)).

The trial court's failure to make specific findings regarding Appellant's ability to pay the fine goes to the legality of that sentence. This Court resolved that question in *Allshouse*, explaining that the lack of findings meant that it "is a challenge to the legality of the sentence (i.e., the fine was imposed unlawfully)," and such a "challenge is brought as of right." 924 A.2d at 1227. See also, e.g., *Thomas*, 879 A.2d at 262 (vacating fine for lack of specific findings where "Appellant presents two challenges to the legality of his sentence … the second concerns imposition of fines without consideration of ability to pay"); *White*, *supra* at *4 (holding that defendant prevails on a legality of the sentencing claim where there was no "determination" or "specific findings" that the defendant could pay a fine). Yet here the trial court never made any "on-the-record determination" of Appellant's ability to pay the fine that *Heggenstaller* requires, nor did it make any "specific findings" of his ability to pay that *Thomas* requires. 879 A.2d at 264. Even in its 1925 Opinion, the trial court makes no attempt to justify the imposition of the fine, concluding only that it was "within the guidelines." 1925 Op. at 7. In the absence of those specific findings required by Section 9726, this Court in *Allshouse* rejected a claim that the trial court had considered information in the PSI report and thus satisfied the statutory requirements. 924 A.2d at 1228.

Accordingly, the presence of a PSI report is insufficient to sustain the imposition of a legal fine absent specific findings on the record.

The trial court's actions run afoul of the requirements because the record lacks any sort of finding that Appellant is or will be able to pay the fine. Consequently, the sentence is illegal, and this Court should grant reconsideration.

B. The absence of record evidence that payment of the fine will not interfere with Appellant's ability to pay restitution renders the fine an illegal sentence.

The trial court imposed restitution in the amount of $1,112.62 but never made any finding and the record is bereft of any information showing that the $5,000 will not interfere with Appellant's ability to pay restitution. 42 Pa.C.S. § 9726(c) requires trial courts to ensure the record shows that the "fine will not prevent the defendant from making restitution or reparation to the victim of the crime." That statutory instruction is straightforward, requiring actual evidence and —consistent with the cases discussed in the preceding section—a finding by the trial court regarding defendant's ability to pay both the fine and restitution. Consistent with that instruction, this Court ruled that a trial court violated Section 9726(c) when it imposed a fine and made "no mention of the restitution award and whether the payment of the fine will impact the restitution payments to the victim"; the implicit conclusion to the contrary in this Opinion is inconsistent with that

decision. *White*, *supra* at *4. In *White*, the Court correctly noted that such a failure by the trial court "challenges the legality of the sentence," as it does here. *Id.*

Accordingly, the fine imposed on Appellant is illegal, and this Court should grant reconsideration.

C. The absence of record evidence that Appellant can or will be able to pay the fine renders the fine an illegal sentence.

The record in this case was insufficient for the trial court to consider Appellant's ability to pay without additional evidence.

The Opinion, in emphasizing that the record contains "some evidence of record regarding the defendant's ability to pay," misapplies the relevant legal standard as set forth in decisions from the Supreme Court and this Court. Section 9726(c) prohibits a fine "unless it appears of record that the defendant is or will be able to pay the fine." A PSI can provide that record evidence, but what this statute requires and what the Supreme Court articulated in *Ford* is not that it is sufficient for the record to contain information about the defendant's finances regardless of whether that record shows the person is or will be able to pay and regardless of how destitute the record shows the person to be. Instead, *Ford* explains that "trial courts are without authority to impose non-mandatory fines absent record evidence that the defendant is or will be able to pay them." *Ford*, 217 A.3d at 829 (emphasis added). Thus, while the *Ford* Court acknowledged that a silent record was plainly

illegal, it went beyond that narrow construction of Section 9726 because the record in that case was not silent and instead contained evidence that the defendant had agreed to pay the fine; it is simply that the record was insufficient to show he would be able to pay. Quoting that same language, this Court has explained that "the import of this holding is quite clear." *Commonwealth v. Snyder*, 251 A.3d 782, 797 (Pa. Super. Ct. 2021). That is, the evidence has to actually show that the defendant is or will be able to pay. Here, there is nothing in the record whatsoever to show that Appellant "is or will be able to pay" the fine, and the fine thus violates *Ford*.

Ford and *Snyder* are among the cases about the legality of the sentence, not the sentencing court's discretion. See *Snyder*, 251 A.3d at 796 ("We note that Appellant did not raise any claim challenging the assignment of fines in the trial court."). If the record does not provide an evidentiary basis for the trial court to make a finding that the defendant is or will be able to pay, the sentence is illegal. This Court's decision in *Boyd* is entirely consistent with this framework (although to the extent it is not, the Supreme Court's ruling in *Ford* controls). The Opinion looked at *Commonwealth v. Boyd*, 73 A.3d 1269, 1273-74 (Pa. Super. Ct. 2013) (en banc) and concluded that here there is some evidence about Appellant's finances contained in the PSI report.

But *Ford*, consistent with Section 9726, clarifies that evidence must be "that the defendant is or will be able to pay" the fine. *Ford*, 217 A.3d at 829. Otherwise, if the evidence shows a person cannot pay, the trial court is "without authority to impose nonmandatory fines" and the fine is an illegal sentence. *Id.* Since the record in *Ford* was not silent about the defendant's ability to pay, the Court had to go beyond that floor.

Here, Appellant is not arguing the trial court's failure to consider the evidence; he is arguing that there is no record showing that he can pay, which is a legality of sentence issue.

The entirety of the PSI shows that Appellant 1) has seven minor children; 2) graduated from high school but had no "special training skills" or post-secondary education; 3) and had previously been employed for four months as a housekeeper and eight months as a stocker making $10/hour—dates unknown—prior to one of the times he was incarcerated. PSI report, 7/16/15 at 4-5.[1] This is the type of record that this Court has explicitly and consistently rejected as sufficient to impose a legal fine. See, e.g., *Commonwealth v. Mead*, 446 A.2d 971, 973 (Pa. Super. Ct. 1982) (presentence report addressing "sporadic employment history, but [that] does not disclose his current income," was insufficient, particularly where "there is

[1] The Memorandum Opinion is mistaken that the PSI report contains information about Appellant's "existing assets." Mem. Op. at 11. It also does not contain an evaluation of his employment history beyond the two jobs noted.

no indication in the record that the sentencing court considered appellant's indebtedness …"). Here, the failure of the record to show that Appellant can or will be able to pay the $5,000 fine renders it an illegal sentence that this Court should vacate.

CONCLUSION

The trial court imposed a $5,000 fine on Appellant when nothing in the record suggested he would be able to pay it, and the court failed to make any specific findings on the record that he would be able to pay. Additionally, although Appellant did not elaborate on every way trial counsel coerced and unduly pressured him into pleading guilty, he did previously raise this issue before the trial court. Accordingly, this Court should grant Appellant's Petition for Reconsideration.

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CERTIFICATE OF COMPLIANCE

I certify that this filing complies with the provisions of the Case Records Public Access Policy of the Unified Judicial System of Pennsylvania that require filing confidential information and documents differently than non-confidential information and documents.

I certify that this application complies with the word count limit of Pa.R.A.P. 2544(c). The certificate relies on the word count of the word processing system used to prepare the application, as Pa.R.A.P. 2544(d)(1) permits.

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PROOF OF SERVICE

I certify that I am this day serving the foregoing Petition for Reconsideration upon the persons and in the manner indicated below, which service satisfies the requirements of Pa.R.A.P. 121:

Kathy G. Wingert, Esquire
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Date: August 26, 2021

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